

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1236

Introduced by Executive Board; Hansen, 16, Chairperson; Arch, 14;
Ballard, 21; Bostar, 29; Clements, 2; Dorn, 30;
Fredrickson, 20; Ibach, 44; Jacobson, 42; McKinney, 11.

Read first time January 21, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Legislature; to amend sections 49-501,
- 2 49-501.01, 49-502, 49-503, 49-504, 49-505, 49-507, 49-508, 49-708,
- 3 84-502, and 85-177, Reissue Revised Statutes of Nebraska, section
- 4 49-707, Revised Statutes Cumulative Supplement, 2024, and sections
- 5 49-506 and 49-617, Revised Statutes Supplement, 2025; to change
- 6 provisions relating to the publication, printing, and distribution
- 7 of the Legislative Journal, the session laws, and the statutes of
- 8 Nebraska; to harmonize provisions; and to repeal the original
- 9 sections.
- 10 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 49-501, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 49-501 The Clerk of the Legislature ~~Secretary of State~~ is hereby
4 authorized to distribute the laws and journals of the state.

5 **Sec. 2.** Section 49-501.01, Reissue Revised Statutes of Nebraska, is
6 amended to read:

7 49-501.01 The session laws and journal of the Legislature shall be
8 compiled and published by the Clerk of the Legislature after each regular
9 session of the Legislature. The session laws and journal may be published
10 in print or electronic format or in both formats. The session laws shall
11 contain all the laws passed by the preceding session as well as those
12 passed during any special session since the last regular session. The
13 session laws shall also contain a certified copy of the Constitution of
14 Nebraska as required by section 49-1701. The clerk shall distribute one
15 copy of the session laws and journal to each person who was a member of
16 the Legislature by which the laws were enacted and shall distribute a
17 second copy to any such person upon such person's ~~his or her~~ request. The
18 clerk shall provide the session laws and journals ~~to the Secretary of~~
19 ~~State~~ for distribution pursuant to sections 49-501 to 49-509.01.

20 **Sec. 3.** Section 49-502, Reissue Revised Statutes of Nebraska, is
21 amended to read:

22 49-502 The county clerk shall distribute one copy of the session
23 laws to the clerk of the district court for the use of the district court
24 in all counties of the state except Lancaster and Douglas Counties, and
25 in those counties one copy for each district judge in the county, to the
26 judge of the county court, to the county attorney, and to the county law
27 library. The county clerk ~~He or she~~ shall also reserve one copy each of
28 the laws and journals for the county clerk's own use ~~himself or herself~~
29 and give one copy to each clerk magistrate in the county.

30 **Sec. 4.** Section 49-503, Reissue Revised Statutes of Nebraska, is
31 amended to read:

1 49-503 The county clerk of each county shall make a requisition to
2 ~~upon the Clerk of the Legislature Secretary of State~~ for copies of the
3 session laws and the journal of the Legislature for the use of such the
4 county ~~of which he or she is clerk~~. The county clerk shall make the
5 requisition for session laws based on the classification of the county by
6 population as provided in section 23-1114.01. A Class 1 county may
7 request a maximum of three sets, a Class 2 county may request a maximum
8 of five sets, a Class 3 county may request a maximum of seven sets, a
9 Class 4 county may request a maximum of ten sets, a Class 5 county may
10 request a maximum of twelve sets, a Class 6 county may request a maximum
11 of twenty sets, and a Class 7 county may request a maximum of twenty-five
12 sets. The county clerk shall make a requisition for less than the maximum
13 amount authorized if the county clerk ~~he or she~~ finds that a lesser
14 amount is sufficient for the needs of the county. The county clerk shall
15 make a requisition for one copy of the journal of the Legislature. The
16 ~~Clerk of the Legislature Secretary of State~~ shall forward the session
17 laws and journal to each county by the most expeditious and economic
18 means and in print or electronic format as the Clerk of the Legislature
19 ~~he or she~~ determines, upon ~~recommendation by the Clerk of the Legislature~~
20 ~~and~~ approval of the Executive Board of the Legislative Council.

21 **Sec. 5.** Section 49-504, Reissue Revised Statutes of Nebraska, is
22 amended to read:

23 49-504 Each county officer shall deliver to such officer's ~~his~~
24 successor in office all laws and journals which shall have come into such
25 officer's ~~his~~ possession under the provisions of sections 49-502 and
26 49-503 as soon after such officer's ~~his~~ successor shall have qualified as
27 such successor or as the county clerk may require.

28 **Sec. 6.** Section 49-505, Reissue Revised Statutes of Nebraska, is
29 amended to read:

30 49-505 After the ~~above~~ distribution under sections 49-502 to 49-504,
31 the copies of laws and journals remaining in the hands of the county

1 clerk may, upon ~~their application, be distributed to the request of the~~
2 librarians of any public libraries within the county for whose support an
3 annual tax is levied, be distributed to such librarians.

4 **Sec. 7.** Section 49-506, Revised Statutes Supplement, 2025, is
5 amended to read:

6 49-506 After the Clerk of the Legislature ~~Secretary of State~~ has
7 made the distribution provided by section 49-503, the clerk ~~he or she~~
8 shall deliver additional copies of the session laws and the journal of
9 the Legislature pursuant to this section in print or electronic format as
10 the clerk ~~he or she~~ determines, upon ~~recommendation by the Clerk of the~~
11 ~~Legislature and~~ approval of the Executive Board of the Legislative
12 Council.

13 One copy of the session laws shall be delivered to the Lieutenant
14 Governor, the State Treasurer, the Auditor of Public Accounts, the
15 Reporter of Decisions, the State Court Administrator, the State Fire
16 Marshal, the Department of Administrative Services, the Department of
17 Agriculture, the Department of Banking and Finance, the State Department
18 of Education, the Department of Insurance, the Department of Labor, the
19 Department of Motor Vehicles, the Department of Revenue, the Department
20 of Transportation, the Department of Veterans' Affairs, the Department of
21 Water, Energy, and Environment, the Military Department, the Nebraska
22 State Patrol, the Nebraska Commission on Law Enforcement and Criminal
23 Justice, each of the Nebraska state colleges, the Game and Parks
24 Commission, the Nebraska Library Commission, the Nebraska Liquor Control
25 Commission, the Nebraska Accountability and Disclosure Commission, the
26 Public Service Commission, the State Real Estate Commission, the Nebraska
27 State Historical Society, the Public Employees Retirement Board, the Risk
28 Manager, the Legislative Fiscal Analyst, the Public Counsel, the materiel
29 division of the Department of Administrative Services, the State Records
30 Administrator, the budget division of the Department of Administrative
31 Services, the Tax Equalization and Review Commission, the inmate library

1 at all state penal and correctional institutions, the Commission on
2 Public Advocacy, and the Library of Congress; two copies to the Governor,
3 the Secretary of State, the Commission of Industrial Relations, and the
4 Coordinating Commission for Postsecondary Education, one of which shall
5 be for use by the community colleges; three copies to the Department of
6 Health and Human Services; four copies to the Nebraska Publications
7 Clearinghouse; five copies to the Attorney General; nine copies to the
8 Revisor of Statutes; sixteen copies to the Supreme Court and the
9 Legislative Council; and thirty-five copies to the University of Nebraska
10 College of Law.

11 One copy of the journal of the Legislature shall be delivered to the
12 Governor, the Lieutenant Governor, the State Treasurer, the Auditor of
13 Public Accounts, the Reporter of Decisions, the State Court
14 Administrator, the Nebraska State Historical Society, the Legislative
15 Fiscal Analyst, the Tax Equalization and Review Commission, the
16 Commission on Public Advocacy, and the Library of Congress; two copies to
17 the Secretary of State and the Commission of Industrial Relations; four
18 copies to the Nebraska Publications Clearinghouse; five copies to the
19 Attorney General and the Revisor of Statutes; eight copies to the Clerk
20 of the Legislature; thirteen copies to the Supreme Court and the
21 Legislative Council; and thirty-five copies to the University of Nebraska
22 College of Law. The remaining copies shall be delivered to the State
23 Librarian who shall use the same, so far as required for exchange
24 purposes, in building up the State Library and in the manner specified in
25 sections 49-507 and ~~to~~ 49-509.

26 **Sec. 8.** Section 49-507, Reissue Revised Statutes of Nebraska, is
27 amended to read:

28 49-507 The State Librarian or the State Librarian's ~~his or her~~
29 designee shall issue one copy each of the session laws and journals to
30 the United States District Attorney, the United States Marshal, the
31 register and receiver of the United States land offices in the state, and

1 each United States Commissioner residing in the state. The State
2 Librarian shall determine whether the copies issued are in print or a
3 reasonably available electronic format, upon recommendation by the Clerk
4 of the Legislature and approval of the Executive Board of the Legislative
5 Council.

6 **Sec. 9.** Section 49-508, Reissue Revised Statutes of Nebraska, is
7 amended to read:

8 49-508 The Clerk of the Legislature shall ~~new members of each~~
9 ~~Legislature shall be furnished by the State Librarian or his or her~~
10 ~~designee~~, at the commencement of the first session for which they are
11 elected, issue each new member of the Legislature with one copy of each
12 of the session laws and journals of the preceding session, with a second
13 copy furnished to any such member upon such member's ~~his or her~~ request.

14 **Sec. 10.** Section 49-617, Revised Statutes Supplement, 2025, is
15 amended to read:

16 49-617 The Clerk of the Legislature is authorized to distribute the
17 statutes of the state. The statutes may be published in print or
18 electronic format or in both formats. The Revisor of Statutes shall cause
19 the statutes to be printed after consultation with the Clerk of the
20 Legislature as to the number of copies to print. The printer shall
21 deliver all completed copies to the Clerk of the Legislature Supreme
22 Court. Such ~~These~~ copies shall be held and disposed of by the clerk ~~court~~
23 as follows: Up to sixty ~~Sixty~~ copies to the State Library to exchange for
24 statutes of other states; up to five copies to the State Library to keep
25 for daily use; up to ~~not to exceed~~ twenty-five copies to the Legislative
26 Council for bill drafting and related services to the Legislature and
27 executive state officers; up to as many copies to the Attorney General as
28 there are ~~he or she has~~ attorneys on the Attorney General's ~~his or her~~
29 staff; up to as many copies to the Commission on Public Advocacy as it
30 has attorneys on its staff; up to sixteen copies to the State Court
31 Administrator; up to thirteen copies to the Tax Commissioner; up to eight

1 copies to the Nebraska Publications Clearinghouse; up to six copies to
2 the Public Service Commission; up to four copies to the Secretary of
3 State; up to three copies to the Tax Equalization and Review Commission;
4 up to four copies to the Clerk of the Legislature for use in the clerk's
5 ~~his or her~~ office and up to three copies to be maintained in the
6 legislative chamber, one copy on each side of the chamber and one copy at
7 the desk of the Clerk of the Legislature, under control of the sergeant
8 at arms; up to three copies to the Department of Health and Human
9 Services; up to two copies each to the Governor of the state, the Chief
10 Justice and each judge of the Supreme Court, each judge of the Court of
11 Appeals, the Clerk of the Supreme Court, the Reporter of Decisions, the
12 Commissioner of Labor, the Auditor of Public Accounts, and the Revisor of
13 Statutes; up to one copy each to the Secretary of State of the United
14 States, each Indian tribal court located in the State of Nebraska, the
15 library of the Supreme Court of the United States, the Adjutant General,
16 the Air National Guard, the Commissioner of Education, the State
17 Treasurer, the Board of Educational Lands and Funds, the Director of
18 Agriculture, the Director of Administrative Services, the Director of
19 Economic Development, the director of the Nebraska Public Employees
20 Retirement Systems, the Director-State Engineer, the Director of Banking
21 and Finance, the Director of Insurance, the Director of Motor Vehicles,
22 the Director of Veterans' Affairs, the Director of Water, Energy, and
23 Environment, the Director of Correctional Services, the Nebraska
24 Emergency Operating Center, each judge of the Nebraska Workers'
25 Compensation Court, each commissioner of the Commission of Industrial
26 Relations, the Nebraska Liquor Control Commission, the State Real Estate
27 Commission, the secretary of the Game and Parks Commission, the Board of
28 Pardons, each state institution under the Department of Health and Human
29 Services, each state institution under the State Department of Education,
30 the State Surveyor, the Nebraska State Patrol, the materiel division of
31 the Department of Administrative Services, the personnel division of the

1 Department of Administrative Services, the Nebraska Motor Vehicle
2 Industry Licensing Board, the Board of Trustees of the Nebraska State
3 Colleges, each of the Nebraska state colleges, each district judge of the
4 State of Nebraska, each judge of the county court, each judge of a
5 separate juvenile court, the Lieutenant Governor, each United States
6 Senator from Nebraska, each United States Representative from Nebraska,
7 each clerk of the district court for the use of the district court, the
8 clerk of the Nebraska Workers' Compensation Court, each clerk of the
9 county court, each county attorney, each county public defender, each
10 county law library, and the inmate library at all state penal and
11 correctional institutions, and each member of the Legislature shall be
12 entitled to two complete sets, and two complete sets of such volumes as
13 are necessary to update previously issued volumes, but each member of the
14 Legislature and each judge of any court referred to in this section shall
15 be entitled, on request, to an additional complete set. Copies of the
16 statutes distributed without charge, as listed in this section, shall be
17 the property of the state or governmental subdivision of the state and
18 not the personal property of the particular person receiving a copy.
19 Distribution of statutes to the library of the College of Law of the
20 University of Nebraska shall be as provided in sections 85-176 and
21 85-177.

22 **Sec. 11.** Section 49-707, Revised Statutes Cumulative Supplement,
23 2024, is amended to read:

24 49-707 The supplements and reissued or replacement volumes of the
25 statutes of Nebraska shall be sold and distributed by the Clerk of the
26 Legislature ~~Supreme Court~~ at such price as shall be prescribed by the
27 Executive Board of the Legislative Council, which price shall be
28 sufficient to recover all costs of publication and distribution.

29 The Clerk of the Legislature ~~Supreme Court~~ may sell for one dollar
30 per volume any compilation or revision of the statutes of Nebraska that
31 has been superseded by a later official revision, compilation, or

1 replacement volume. The Clerk of the Legislature ~~Supreme Court~~ may
2 dispose of any unsold superseded volumes in any manner the clerk ~~it~~ deems
3 proper.

4 All money received by the Clerk of the Legislature ~~Supreme Court~~
5 from the sale of the supplements and reissued or replacement volumes
6 shall be paid into the state treasury to the credit of the Nebraska
7 Statutes Cash Fund or the Nebraska Statutes Distribution Cash Fund, as
8 appropriate. That portion of the money received that represents the costs
9 of publication shall be credited to the Nebraska Statutes Cash Fund, and
10 that portion of the money received that represents the costs of
11 distribution shall be credited to the Nebraska Statutes Distribution Cash
12 Fund. The Clerk of the Legislature ~~court~~ shall take receipts for all such
13 money paid into the funds.

14 Supplements and reissued volumes shall be furnished and delivered
15 free of charge in the same number and to the same parties as are
16 designated in section 49-617.

17 **Sec. 12.** Section 49-708, Reissue Revised Statutes of Nebraska, is
18 amended to read:

19 49-708 The Nebraska Statutes Cash Fund is created. The fund shall
20 consist of funds received pursuant to section 49-707. The fund shall be
21 used by the Revisor of Statutes to perform the duties required by
22 subdivision (4) of section 49-702 and section 49-704, except that
23 transfers may be made from the fund to the General Fund at the direction
24 of the Legislature. Any money in the Nebraska Statutes Cash Fund
25 available for investment shall be invested by the state investment
26 officer pursuant to the Nebraska Capital Expansion Act and the Nebraska
27 State Funds Investment Act.

28 The Nebraska Statutes Distribution Cash Fund is created. The fund
29 shall consist of funds received pursuant to section 49-707. The fund
30 shall be used by the Clerk of the Legislature ~~Supreme Court~~ to perform
31 the duties required by such section. Any money in the fund available for

1 investment shall be invested by the state investment officer pursuant to
2 the Nebraska Capital Expansion Act and the Nebraska State Funds
3 Investment Act.

4 **Sec. 13.** Section 84-502, Reissue Revised Statutes of Nebraska, is
5 amended to read:

6 84-502 It shall be the duty of the Secretary of State:

7 (1) To countersign and affix the seal of the state to all
8 commissions required by law to be issued by the Governor;

9 (2) To keep a register of all such commissions specifying the person
10 to whom granted, the office conferred, the date of signing the
11 commission, and, when bond or an equivalent commercial insurance policy
12 is taken, the date and amount thereof and the names of the sureties;

13 (3) To make and keep proper indexes to the records and all public
14 acts, resolutions, papers, and documents in his or her office;

15 (4) To give any person requiring the same, and paying the lawful
16 fees therefor, a copy of any law, act, resolution, record, or paper in
17 his or her office, and attach thereto his or her certificate under the
18 seal of the state; and

19 ~~(5) To distribute the laws and journals as authorized by section~~
20 ~~49-501 and keep an account thereof; and~~

21 (5)(a) ~~(6)(a)~~ To act as the chief protocol officer of the State of
22 Nebraska;

23 (b) In coordination with the Governor, the Department of Economic
24 Development, the Department of Agriculture, and other interested federal,
25 state, and local officials, to actively seek appropriate contacts with
26 other officials in nations with which the state has or desires to have
27 active trade, cultural, or educational relations; and

28 (c) To help facilitate the interchange of ideas and contacts for
29 betterment of commerce, cultural exchange, or educational studies between
30 such nations and the state.

31 **Sec. 14.** Section 85-177, Reissue Revised Statutes of Nebraska, is

1 amended to read:

2 85-177 In order to enable the library of the College of Law to
3 augment its collections, the librarian of the College of Law of the
4 University of Nebraska is authorized to requisition from the respective
5 officer having custody thereof up to one hundred copies of the following
6 state publications: Legislative Journals, Session Laws, replacement
7 volumes and supplements to the Revised Statutes, and Opinions of the
8 Attorney General. The copies of the Legislative Journals, ~~and Session~~
9 ~~Laws, and replacement volumes and supplements to the Revised Statutes~~ may
10 be provided in print or electronic format as the Clerk of the Legislature
11 ~~Secretary of State~~ determines, upon ~~recommendation by the Clerk of the~~
12 ~~Legislature~~ and approval of the Executive Board of the Legislative
13 Council.

14 **Sec. 15.** Original sections 49-501, 49-501.01, 49-502, 49-503,
15 49-504, 49-505, 49-507, 49-508, 49-708, 84-502, and 85-177, Reissue
16 Revised Statutes of Nebraska, section 49-707, Revised Statutes Cumulative
17 Supplement, 2024, and sections 49-506 and 49-617, Revised Statutes
18 Supplement, 2025, are repealed.